

23SMCV01293 23SMCV01293

County: los-angeles

Division: Civil Law and Motion

Department: 11

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Case Number: 23SMCV01293 Hearing Date: September 28, 2026 Dept: 11

Doe 1 v.

International Medical Devices, Inc. (23SMCV01293)

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Tentative Ruling Re:

Motion to Vacate Dismissal

Date: 9/28/26

Time: 11:00 am

Moving Party: John

Doe 1, et al. (collectively "Plaintiffs")

Opposing

Party: International Medical

Devices, Inc., James J. Elist, James J. Elist, M.D., a Medical Corporation, and

Menova International, Inc. (collectively "Defendants")

Department: 11

Judge: Bruce G. Iwasaki

TENTATIVE RULING

Plaintiffs'

motion to vacate dismissal is denied.

BACKGROUND

This is a product-defect case. The alleged product is a penis-enlargement device called Penuma. The complaint alleges that Plaintiffs underwent surgeries to implant the device. Plaintiffs claim the device did not perform as marketed and ended up disfiguring them.

On April 14, 2025, Plaintiff voluntarily dismissed Implantech Associates, Inc. ("Implantech") from the case with prejudice.

Here, Plaintiffs move to vacate the dismissal.

DISCUSSION

Arguments

Plaintiffs

In deciding to dismiss Implantech with prejudice, Plaintiffs assert that their prior counsel relied on two 2025 declarations – the declaration of Defendant Dr. James Elist, the inventor of Penuma, and the declaration of Edward Leicht, Implantech's Chief Operating Officer and General Manager. Plaintiffs claim the 2025 declarations stated that Implantech played no role in the development, design, or design changes of Penuma. (See Motion, pp. 4-5; see also id. at pp. 3, 6-8.)

Allegedly, Plaintiffs' new counsel recently discovered statements that Leicht made in a federal case in 2020 that contradict the 2025 declarations. Plaintiffs insist that the 2020 statements indicate that Implantech discussed design concepts and design changes with Dr. Elist and participated in creating prototypes. (See id. at pp. 4-5; see also id. at pp. 3, 6-8.)

Plaintiffs contend relief should be granted because:

* "California courts . . . possess[] inherent equitable authority to vacate [] judgment[s] or dismissal[s] procured through

extrinsic fraud or extrinsic mistake.” (Id. at p. 8 [citing *Rappleyea v. Campbell* (1994) 8 Cal.4th 975 (*Rappleyea*) and *Olivera v. Grace* (1942) 19 Cal.2d 570].)

* The “inherent equitable authority extends fully to voluntary dismissals executed with prejudice.” (Ibid. [citing *Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249 and *Whittier Union High School District v. Superior Court* (1977) 66 Cal.App.3d 504 (“*Whittier Union*”)]; see also id. at p. 9.)

* The misrepresentations in the 2025 declarations constitute extrinsic fraud. (See id. at pp. 9-12.)

* “Plaintiffs satisfy the equitable requirements” (id. at p. 12, ~~bolding and capitalizing deleted~~):

—
“Plaintiffs possess meritorious claims against Implantech[.]” (Ibid., ~~bolding and capitalizing deleted~~.)

—
“Plaintiffs possess a satisfactory excuse for not challenging the dismissal earlier[.]” (Id. at p. 13, ~~bolding and capitalizing deleted~~; see also id. at p. 14.)

—
“Plaintiffs acted diligently upon discovering the basis for relief[.]” (Id. at p. 14.)

Defendants

Defendants claim:

* Plaintiffs failed to meet and confer. (See Opposition, pp. 6-7.)

* Statutory relief under Code of Civil Procedure section 473(b) is time-barred. (See id. at pp. 11-12.)

* Equitable relief is unavailable for voluntary

dismissals. (See id. at pp. 12-13.)

* *Rappleyea*, supra, 8 Cal.4th 975 is distinguishable. (See id. at pp. 13-14.)

* “Plaintiffs misstate the three-prong test” for equitable relief. (Id. at p. 14, bolding and capitalizing deleted.)

* The prototypes mentioned in the 2020 statements were research-and-development concepts, “not actionable design defects.” (Ibid., bolding and capitalizing deleted.)

* “Plaintiffs’ tactical decision to forgo discovery precludes any claim of extrinsic fraud.” (Id. at p. 15, bolding and capitalizing deleted; see also id. at p. 16.)

* “Plaintiffs’ strategic decision to dismiss was a calculated tactical choice[.]” (Id. at p. 16, bolding and capitalizing deleted.)

* New “counsel’s belated review of public dockets cannot unwind prior counsel’s strategic decisions.” (Id. at p. 17, bolding and capitalizing deleted; see also id. at p. 18.)

Reply

In reply, Plaintiffs state:

* Even after a voluntary dismissal, the Court retains inherent equitable authority “to grant relief from a judgment or order obtained through extrinsic fraud or mistake.” (Reply, p. 3.)

* “Defendants’ ‘commercial device’ qualification does not resolve the material conflict[.]” (Id. at p. 4 [“The Opposition attempts to rewrite the

declarations by inserting a limitation their authors did not disclose when seeking dismissal. According to Defendants, 'no role' meant no role in designing only the final commercial device implanted in Plaintiffs, not no role in Penuma-related design discussions, engineering, molds, or prototypes. [¶] But the dismissal request was made against claims that expressly placed Implantech's design-modification and prototype activities at issue. In that context, stating that Implantech played 'no role' in development, design changes, or prototype creation conveyed that no such activity existed."], bolding and capitalizing deleted; see also id. at p. 5.)

* "Defendant's misrepresentations . . . prevented adjudication of Plaintiffs' claims[.]" (Id. at p. 5 ["The fraudulent declarations were transmitted for the specific purpose of inducing Plaintiffs to dismiss Implantech before the factual representations were subjected to discovery, deposition, or judicial determination. Plaintiffs relinquished their claims because they accepted those representations. The deception therefore did not occur during a trial in which Plaintiffs had a fair opportunity to expose it; it prevented any adjudication from occurring."], bolding and capitalizing deleted; see also id. at pp. 6-7.)

* The three equitable requirements are met. (See id. at pp. 7-9 [arguing that (1) "Plaintiffs have shown a meritorious case[.]" (2) "Plaintiffs have a satisfactory excuse for not presenting their claims[.]" and (3) "Plaintiffs acted diligently after discovery"], bolding and capitalizing deleted.

* Plaintiffs met and conferred. (See id. at p. 9 ["Defendants contend that Plaintiffs failed to meet and confer in good faith, but the parties did meet and confer. Defendants requested that Plaintiffs withdraw the motion, Plaintiffs declined to do so, and the parties did not reach a resolution."].)

* Defendants' attorney-turnover argument is unavailing. (See *ibid.* ["The changes in Plaintiffs' counsel likewise do not resolve the issue before the Court. Current counsel took over these cases on May 14, 2026 and subsequently discovered Mr. Leicht's 2020 declaration and its conflict with the misrepresentations previously supplied to obtain Implantech's dismissal. Plaintiffs promptly sought relief. The fact that different attorneys previously handled the cases does not change what the declarations said, what Defendants now acknowledge about Implantech's prototype work, or the stated reason Plaintiffs agreed to dismiss Implantech."].)

Analysis

Subject to certain exceptions, a “plaintiff has the absolute right to dismiss the action ‘any time before the actual commencement of trial.’” (Weil & Brown, Cal. Practice Guide: Civ. Procedure Before Trial (The Rutter Group 2026) ¶ 11:2; see also *id.* at ¶ 11:6.)

The “[p]laintiff may dismiss the entire complaint or just some part of it (e.g., one of several causes of action). Or, [the] plaintiff can dismiss as against some, but not all, defendants named in the complaint.” (*Id.* at ¶ 11:3.)

Moreover, the “[p]laintiff may dismiss with or without prejudice to the right to file another action on the same claim.” (*Id.* at ¶ 11:4.)

“[A] voluntary dismissal of an entire action deprives the court of both subject matter and personal jurisdiction.” (*Id.* at ¶ 11:34.)

“Even so, the court has power under [Code of Civil Procedure section] 473(b) to vacate a voluntary dismissal entered as a result of ‘mistake, inadvertence, surprise, or excusable neglect[.]’” (*Id.* at ¶ 11:34.11 [citing *Zamora*, *supra*, 28 Cal.4th at 254-255]; see also *id.* at ¶ 11:41.)

“A voluntary dismissal may also be set aside if procured by fraud.” (*Id.* at ¶ 11:34.15.) “If the fraud is discovered within 6 months, relief may be sought in the dismissed action under” section 473(b).” (*Ibid.*)^[1] “Thereafter, equitable relief may be sought in an independent action but is available only for ‘extrinsic,’ not ‘intrinsic,’ fraud[.]” (*Ibid.* [citing *Heyman v. Franchise Mortgage Acceptance Corp.* (2003) 107 Cal.App.4th 921, 926], emphasis in original.)

“Extrinsic fraud occurs when a party is deprived of his opportunity to present his claim or defense to the court, where he was kept in ignorance or in some other manner fraudulently prevented from fully participating in the proceeding.” (*Heyman*, *supra*, 107 Cal.App.4th at 926.) “Examples of extrinsic fraud are: concealment of the existence of a community property asset, failure to give notice of the action to the other party, convincing the other party not to obtain counsel because the matter will not proceed (and it does proceed).” (*Ibid.*; see also Weil &

Brown, *supra*, at ¶ 5:441 [listing examples].)

In contrast,

[f]raud is

intrinsic and not a valid ground for setting aside a judgment when the party has been given notice of the action and has had an opportunity to present his case and to protect himself from any mistake or fraud of his adversary, but has unreasonably neglected to do so. [Citation.]

Such a claim of fraud goes to the merits

of the prior proceeding which the moving party should have guarded against at the time. Where the defrauded party failed to take advantage of liberal discovery policies to fully investigate his or her claim, any fraud is intrinsic fraud.

(Heyman,

supra, 107 Cal.App.4th at 926, emphasis in original.)

Plaintiffs' motion to vacate their dismissal of

Implantech is denied. Equitable relief is unwarranted for two reasons.

First, when Plaintiffs filed their voluntary

dismissal with prejudice, they were represented by counsel and could have conducted discovery to verify the 2025 declarations. (See Weil & Brown, *supra*, at ¶ 5:440 ["The usual case in which 'extrinsic' fraud is found is where a party was not represented by counsel.

If the [party] had a lawyer and the opportunity to litigate, any fraud or mistake will usually be classified as 'intrinsic' (hence, not ground for equitable relief)."], emphasis in original.) In other words, even if there had been fraud, it was not extrinsic fraud

Second, Defendants establish that the products

addressed in the 2020 statements were different from the product at issue in Plaintiffs' lawsuit, meaning the 2025 declarations were not fraudulent. (See Opposition, pp. 8-10, 14-15; see also Supp. Leicht Decl., ¶¶ 4-18; Grimaldi Decl., ¶¶ 6-8, Exs. A-C; cf. Poindexter Decl., Exs. B-D.)

Plaintiffs' authorities do not change the result. The cases they cite involved unique and distinguishable facts. In *Rappleyea*, *supra*, 8 Cal.4th 975, the defendants were out-of-state residents who represented themselves, and the court

clerk's office misinformed the defendants' informal counsel about the correct amount for the filing fee for the defendants' answer. Further, the plaintiff's counsel "misdescribed California law" to the defendants. On these facts, denial of a motion to vacate default was reversed. In *Olivera*, supra, 19 Cal.2d 570, the plaintiff obtained a default judgment against an incompetent defendant by concealing the defendant's incompetency from the court. Accordingly, the administrator of the incompetent defendant stated a claim for relief from the default judgment. In *Zamora*, supra, 28 Cal.4th 249, the court granted a motion to vacate judgment granted under section 473(b)'s discretionary-relief provision because the settlement offer contained a typo. In *Whittier Union*, supra, 66 Cal.App.3d 504, a voluntary dismissal was set aside because the plaintiffs' attorney settled the case without plaintiffs' knowledge and consent. Nothing like these circumstances apply to Plaintiffs' dismissal here.

Plaintiffs' motion to vacate the dismissal is denied.

Consequently, the motion to vacate is denied.

[1] It is undisputed that Plaintiffs missed the six-month deadline.